

Apex Dream Homes Pvt. Ltd. v. Chaitra V, Managing Director, Paschimanchal Vidyut Vitran Nigam & 4 Others

High Court of Judicature at Allahabad · Single Judge · 20 July 2023 (final order dismissing the contempt application, per Hon'ble Rohit Ranjan Agarwal, J.; prima facie contempt found on 14.6.2023 by Hon'ble Kshitij Shailendra, J.; proceedings deferred on 6.7.2023; underlying writ interim order of 23.5.2023) · 2023:AHC:144975 · Contempt Application (Civil) No. 4476 of 2023 (arising from Writ-C No. 17587 of 2023) · **Contempt application dismissed and contempt notice discharged (order dated 20.7.2023). The applicant, a builder representing the residents of a housing society, had obtained an interim order dated 23.5.2023 in Writ-C No. 17587 of 2023 restraining the licensee from compelling installation of multi-point connections and directing that the single-point connection be continued (and restored if any multi-point action had been taken), the writ court noting that a majority of the 618 flat-owners wanted single-point connection and that no provision empowering the licensee to compel migration to multi-point had been shown. Alleging that the licensee continued installing multi-point meters in breach, the applicant filed this contempt application; on 14.6.2023 a learned Single Judge found a prima facie case of contempt and directed the officers to appear and show cause. On 6.7.2023 the contempt proceedings were deferred as a special leave petition against the 23.5.2023 order was pending before the Supreme Court. On 20.7.2023, the applicant's counsel stated that the Supreme Court had set aside the writ-court's order, and, no case for contempt therefore surviving, the contempt application was dismissed and the notice discharged. The single-point/multi-point controversy itself was not decided on the merits.**

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HEADNOTE

A contempt application does not survive once the order alleged to have been disobeyed is set aside by the Supreme Court; no case for contempt is then made out, and the application is dismissed and the notice discharged. The applicant-builder, espousing the cause of the residents of a housing society of 618 flats, had obtained an interim order dated 23.5.2023 (Writ-C No. 17587 of 2023) by which the writ court, observing that only 222 of 618 flat-owners had agreed to multi-point connection (the majority wanting single-point) and that no provision had been shown empowering the licensee to compel migration from single-point to multi-point, directed that the single-point connection be continued and that any multi-point action be reversed. Alleging continued installation of multi-point meters, the applicant filed this contempt application, and on 14.6.2023 a learned Single Judge found a prima facie case of contempt and directed the officers to show cause. On 6.7.2023 the proceedings were deferred pending the licensee's special leave petition to the Supreme Court against the 23.5.2023 order. On 20.7.2023, the applicant's counsel stated that the Supreme Court had set aside the writ-court's order; the Court held that no case for contempt was accordingly made out and dismissed the contempt application, discharging the notice. The single-point/multi-point controversy itself remained undecided on the merits, the interim order having been set aside.

FACTUAL SUMMARY

Apex Dream Homes Pvt. Ltd., a builder, had constructed 618 residential flats in a society (Apex Athena Welfare Society); possession had been delivered but sale deeds were still being executed and maintenance had not been handed over to the society, so the builder continued to espouse the residents' interests. A controversy arose over the installation of multi-point versus single-point electricity connection: a majority of the residents wanted single-point connection, while the respondent licensee (Paschimanchal Vidyut Vitran Nigam Ltd.) sought to replace single-point with multi-point. After an earlier writ (Writ-C No. 13354 of 2023, disposed of on 21.4.2023) directed the Electricity Consumer Grievance Redressal Forum, Meerut to decide the builder's interim application in Complaint Case No. 13 of 2023 within three weeks — the Forum being non-functional for want of quorum — the builder filed Writ-C No. 17587 of 2023. By interim order dated 23.5.2023 the writ court, noting that only 222 of the 618 flat-owners had agreed to multi-point connection and that no provision empowering the licensee to compel migration had been shown, directed that the single-point connection be continued and that any multi-point action be reversed. Alleging that the licensee continued installing multi-point meters in breach, the builder filed this contempt application. On 14.6.2023, a learned Single Judge (Hon'ble Kshitij Shailendra, J.) found a prima facie case of contempt and directed the officers to appear and show cause. On 6.7.2023, the Court (Hon'ble Rohit Ranjan Agarwal, J.) deferred the contempt proceedings as the licensee's special leave petition against the 23.5.2023 order was pending before the Supreme Court. On 20.7.2023, the applicant's counsel stated that the Supreme Court had set aside the writ-court's order, and the contempt application was dismissed.

REUSABLE CONSTRUCTIONS

1. A contempt application cannot survive the setting aside of the very order alleged to have been disobeyed; once the underlying order is set aside by the Supreme Court, no case for contempt is made out and the application is dismissed and the notice discharged. [order of 20.7.2023](#)
2. A distribution licensee cannot compel a society or its residents to replace a single-point connection with a multi-point connection where the majority of the flat-owners want single-point and no empowering provision is shown — but this proposition, expressed in the writ court's interim order here, did not survive, that order having been set aside by the Supreme Court. [order of 23.5.2023](#)

HOLDING-UNITS

INTERPLAY · OFFTOPIC::contempt-civil

RATIO

A contempt application does not survive the setting aside of the order alleged to have been disobeyed; no contempt is made out once the underlying order is set aside by the Supreme Court

QUESTION

Does a contempt application for disobedience of a writ-court order survive after that order is set aside by the Supreme Court?

HOLDING

No. Although a prima facie case of contempt of the writ court's interim order dated 23.5.2023 had earlier been found (order of 14.6.2023), and the proceedings were deferred (order of 6.7.2023) pending the licensee's special leave petition, the applicant's counsel stated on 20.7.2023 that the Supreme Court had set aside the writ court's order. As the very order alleged to have been disobeyed no longer stood, no case for contempt was made out; the contempt application was dismissed and the contempt notice discharged. [order of 20.7.2023](#)

EVIDENCE “Learned counsel for the applicant states that the order of writ Court has been set aside by the Hon'ble Supreme Court as such no case for contempt is made out” [order of 20.7.2023](#)

EVIDENCE “In view of the statement so made by counsel for the applicant the contempt application stands dismissed” [order of 20.7.2023](#)

FLAG Order-sheet with several dated orders and no consistent numbered paragraphs across them (pin_basis=date). Final order of 20.7.2023 (neutral citation 2023:AHC:144975) by Hon'ble Rohit Ranjan Agarwal, J.

PRINCIPLE TAGS

contempt-does-not-survive-setting-aside-of-underlying-order The writ court's order of 23.5.2023 having been set aside by the Supreme Court, the contempt application founded on its disobedience was dismissed as no case for contempt survived. [order of 20.7.2023](#)

single-point-to-multipoint-requires-51-percent-consumers The writ court's interim order (since set aside) had proceeded on the footing that the licensee could not compel migration from single-point to multi-point where the majority of the 618 flat-owners wanted single-point and no empowering provision was shown. [order of 23.5.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE COULD REPLACE THE SOCIETY'S SINGLE-POINT CONNECTION WITH A MULTI-POINT CONNECTION, AND THE EFFECT OF THE UPERC ORDER DATED 8.5.2020 AND THE SUPPLY CODE CONSENT REQUIREMENTS

Not decided on the merits; the writ court's interim view (that migration could not be compelled where the majority wanted single-point) was set aside by the Supreme Court, and the contempt application was dismissed in consequence. [order of 23.5.2023](#); [order of 20.7.2023](#)

NOT DECIDED — THE PRIMA FACIE FINDING OF CONTEMPT MADE ON 14.6.2023

Not carried to a conclusion; the contempt proceedings were deferred on 6.7.2023 pending the special leave petition and then dismissed on 20.7.2023 once the underlying order was set aside. [order of 14.6.2023](#); [order of 20.7.2023](#)

RELATED CASES — SEE ALSO

SCJ-355 — Single-point to multi-point migration requires the consent of a majority (51%) of consumers — the topical question here, left undecided on the merits.

SCJ-1187 — Single-point connection / two connections in the same premises — cognate single-point-connection topic.

SCJ-2222 — Recent civil-contempt companion where the substantive order was stayed/superseded and the contempt dismissed.

SCJ-2223 — Recent civil-contempt companion dismissed on a supervening event (compliance shown).

SCJ-2215 — OFFTOPIC civil-contempt sibling on the scope and limits of contempt jurisdiction.

SCJ-2228 · Apex Dream Homes Pvt. Ltd. v. Chaitra V, Managing Director, Paschimanchal Vidyut Vitran Nigam & 4 Others · 2023:AHC:144975 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.